

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN AOTEAROA NEW ZEALAND

Complete Community Opposition How-To

This guide is built around Aotearoa New Zealand's two great levers — the Save Manapūuri model of sustained, broad, visible public pressure (the petition, the campaign, the ballot box), and the distinctly powerful modern lever of Te Tiriti o Waitangi, tikanga Māori, the precautionary bottom line, and legal personhood for nature — and it names the tools you'll meet (the petition and the ballot, the Treaty and the courts, the Supreme Court's precaution, legal personhood, the RMA in transition) in plain words.

INTRODUCTION & FRAMEWORK

The country's most famous environmental victory did not turn on a permit — it turned on a lake, a petition, and a movement that would not be ignored. In the late 1960s, the Government planned to raise **Lake Manapūuri** in Fiordland by as much as thirty metres to feed a hydro scheme for an aluminium smelter, drowning the lake's wooded islands and beech-forest shores and merging it with Lake Te Anau. Against it rose the **Save Manapūuri campaign** — led by Forest & Bird, local farmers, and scientists — and in 1970 it delivered a petition signed by **264,907 New Zealanders, nearly one in ten of the entire population**, the largest in the country's history to that point. Manapūuri became a defining issue at the **1972 general election**, and the lake was saved — its level never raised, its shores intact to this day. Sustained, broad, visible public pressure had made a project the government backed politically impossible.

The Save Manapūuri campaign, whose 264,907-signature petition made a hydro scheme politically impossible, showed the first great Aotearoa lever — sustained public pressure, the petition and the campaign and the ballot box — and modern Aotearoa adds a second, distinctly powerful one. **Te Tiriti o Waitangi and tikanga Māori** carry real legal weight: in 2021 the Supreme Court stopped South Taranaki seabed iron-sand mining, ruling the Treaty and Māori customary interests must get a "broad and generous" reading. The **precautionary bottom line** favours caution and environmental protection. **Legal personhood** now protects some natural features — the former Te Urewera park and, through the 2017 Te Awa Tupua settlement, the **Whanganui River**, a legal person with its own guardians. The **courts, up to the Supreme Court**, enforce all of these; protest, petition, and litigation are lawful. And the **RMA** (now in transition) governs projects. But these tools have real limits, and this guide states them plainly. The **Resource Management Act is being replaced**, its successor still taking shape, so the legal ground is shifting. A **fast-track process narrows public input and appeals**, and projects rejected before have been resubmitted under it. And **non-notified consents** can shut the public out of a decision entirely. So aim for what these levers can deliver while watching the shifting law that can narrow your say.

The Whole Strategy in One Idea

A government-backed project looks unstoppable, but it meets a public that can rise and a Treaty that binds, and a chain breaks at its weakest link. An Aotearoa fight turns on **sustained public pressure** (the petition, the ballot); on **Te Tiriti and tikanga Māori**; on the **precautionary bottom line**; on **legal personhood** where it applies; and on the **courts** and the **RMA**. Every one of those is a link you can grab — and public

pressure and the Treaty are the two that reach highest. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend months on this, work out your real situation:

- **If the public can be moved, sustained pressure is your proven lever** — the petition, the campaign, and the ballot box saved Manapūuri.
- **If a project affects the sea, the environment, or Māori rights, Te Tiriti and the precautionary bottom line are your sharpest** — they stopped the South Taranaki seabed mine in the Supreme Court.
- **If a river or feature has legal personhood, that protects it** — the Whanganui and Te Urewera are legal persons with guardians.
- **If it's fast-tracked or non-notified, watch the shifting law** — the fast-track narrows appeals and non-notified consents can shut you out, so act early and loudly.

Read the whole guide once before you move. Two habits run through it: **build sustained, broad, visible public pressure — the petition, the campaign, the ballot, and use Te Tiriti, tikanga Māori, the precautionary bottom line, and legal personhood** — while watching the RMA in transition that can narrow your say. That's how Manapūuri was saved and the seabed mine stopped.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

A project needs consents under the **RMA (now in transition)**, decided by councils and, on big projects, by ministers or a **fast-track** process — with the public sometimes shut out by **non-notified consents**. But every decision-maker is bound by **Te Tiriti o Waitangi and tikanga Māori** and by the **precautionary bottom line** the Supreme Court affirmed. Some features hold **legal personhood**. The **courts, up to the Supreme Court**, enforce these. And behind it all, **sustained public pressure** can make a project politically impossible. Know which of these you can reach — public pressure and the Treaty are the sharpest.

How a Project Moves — and Where You Jump In

The consent (RMA / fast-track). The project seeks its consents. *Your opening* — *act early, before you're shut out*: the notification and consent process, and any Treaty or precautionary failing.

Te Tiriti and the precautionary bottom line. *Your opening* — *the sharpest modern one*: a project affecting the sea, the environment, or Māori rights must meet the Treaty and favour caution, as the seabed mine failed to.

Legal personhood. *Your opening*: a feature with legal personhood (the Whanganui, Te Urewera) has its own standing and guardians.

Public pressure. *Your opening* — *the proven one*: the petition, the campaign, the ballot box that saved Manapūuri.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and what consents it needs** — and whether it's fast-tracked or non-notified, so you know your window. **What it affects** — the sea, the environment, Māori rights, a

legal-person feature — because that engages the Treaty and the precautionary bottom line. **What public feeling it can rouse** — because sustained public pressure is the decisive Aotearoa force.

Who's Supposed to Be Watching

Each is an ally or an arena. **Councils, ministers, and the fast-track process** decide the consents. **Te Tiriti, tikanga Māori, and the precautionary bottom line** bind every decision-maker. **Legal personhood** gives some features their own guardians. The **courts, up to the Supreme Court**, enforce it all. And Aotearoa's **iwi and hapū, community groups, Forest & Bird and other NGOs, scientists, and a free press** are the forces that reach furthest — the coalition that saved Manapūiri and stopped the seabed mine.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the public can be roused, whether the Treaty or precautionary bottom line is engaged, and whether the shifting law leaves you a say.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Sustained public pressure (petition, ballot)	35–60%	months–years	low	A project made politically impossible (Manapūiri)
Te Tiriti / tikanga Māori	35–60%	months–2 yr	low–mod	The Treaty upheld; a project stopped
The precautionary bottom line (courts)	35–60%	months–2 yr	mod	Caution favoured (South Taranaki seabed)
Legal personhood (Whanganui, Te Urewera)	30–55%	varies	low	A feature's own standing invoked
Participate / object in the consent process	20–45%	during consent	low	On record; conditions or refusal
Court challenge (up to Supreme Court)	30–55%	1–3 yr	mod	A consent quashed; a bottom line set
Everything together (public pressure + Treaty)	45–70%	months–years	mod	Stopped, politically and legally
When fast-tracked / non-notified	15–40%	short	low	A narrowed but real fight — act early

The levers that move the needle most are **sustained public pressure** and **Te Tiriti with the precautionary bottom line**, backed by **legal personhood** and the **courts**. Manapūiri shows the ceiling (a national-scale petition and a general election making a hydro scheme impossible) and the seabed-mine case shows the modern one (the Supreme Court favouring caution and a "broad and generous" Treaty reading). The honest floor is a shifting RMA, a fast-track that narrows appeals, and non-notified consents that shut the public out. So aim for a project made impossible by public pressure, a Treaty or precautionary bottom line upheld, and a feature protected as a legal person.

On cost: the petition, the campaign, participating in consents, and mobilising are affordable; litigation costs more but the Treaty and precautionary levers are powerful. The great strength is public pressure plus the Treaty-and-personhood framework; the great requirement is to act early and loudly before a fast-track or non-notified consent narrows your say.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this Treaty failing, this precautionary breach, this non-notified consent — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, and the consents it needs — and whether it's **fast-tracked or non-notified**, so you know your window.

2. What does it affect? The **sea, the environment, Māori rights, or a legal-person feature** (the Whanganui, Te Urewera) — because that engages **Te Tiriti and the precautionary bottom line**, your sharpest modern levers, as with the seabed mine.

3. What stage is it at, and what's the opening? Is the consent notified or non-notified? Is it fast-tracked? Is there a Treaty or precautionary failing? Is an election near (as Manapūuri met 1972)? Act early.

4. What public feeling can it rouse? Because **sustained public pressure** — the petition, the campaign, the ballot — is the proven, decisive Aotearoa force.

5. Who's your coalition? Iwi and hapū, community groups, Forest & Bird and other NGOs, scientists, and the press — the coalition that saved Manapūuri and stopped the seabed mine.

What this looks like in real life. A seabed or coastal project would harm the sea and Māori customary interests, seeking consent. The five questions yield: the company and its consents (and whether you're shut out); the sea and Māori rights it affects (engaging the Treaty and precaution); a consent and possible court moment; strong public feeling to rouse; and a coalition of iwi, NGOs, and scientists. That's the Aotearoa pattern — build public pressure, and press Te Tiriti and the precautionary bottom line, up to the Supreme Court.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and a case the public and the courts respond to. Build it in three layers.

Layer one: the environmental and Treaty harm. Document the harm to the **environment, the sea, and Māori rights and taonga** — the wooded shores, the seabed, the customary interests — with credible evidence, because this grounds both the public case and the Treaty-and-precautionary case that stopped the seabed mine.

Layer two: the consent and the process. Get the **consent application and the notification status** (notified, non-notified, fast-tracked), and read them for the flaws and the Treaty and precautionary failings — and for whether the public is being shut out.

Layer three: the map and the public case. Lay the project over the environment, the sea, the Māori interests, and any legal-person feature, and shape the clear, rally-able case that roused the nation for Manapūuri. Walking into the consent process, the courts, or the public with the documented harm, the

Treaty failing, and a rally-able case is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental, sea, and Māori-rights harm** — the taonga, the customary interests, the seabed or shore — with credible evidence.
- **The consent application and notification status** — notified, non-notified, or fast-tracked.
- **The Treaty and precautionary failings** — where the project fails the "broad and generous" reading or the bottom line.
- **Any legal-person feature** — the Whanganui, Te Urewera, and their guardians.
- **The public case** — the clear, rally-able story that saved Manapūuri.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; sustained public pressure and iwi/hapū partnership give you the two decisive Aotearoa forces. Build in four moves.

Build sustained, broad, visible public pressure. The Manapūuri lesson: a petition, a campaign, and the ballot box — sustained, broad, visible — can make a project politically impossible. Build that pressure, aiming for the scale that roused nearly one in ten New Zealanders.

Partner with iwi and hapū. Where a project affects Māori rights, the environment, or the sea, **iwi and hapū** and **tikanga Māori** are central, and Te Tiriti is a powerful lever. Partner genuinely and early, and let mana whenua lead on their own interests.

Bring in NGOs, scientists, and lawyers. Forest & Bird and other NGOs, scientists for the evidence, and lawyers for the Treaty, the precautionary bottom line, and the courts — the coalition that won Manapūuri and the seabed-mine case.

Build to last, and act early. With the RMA in transition, a fast-track narrowing appeals, and non-notified consents that can shut you out, act early and loudly. Build clear roles, a secure archive, a way to decide together, and the endurance for a sustained campaign that may run to an election.

STEP 4: TE TIRITI, THE COURTS & PUBLIC PRESSURE

Aotearoa's sharpest levers are sustained public pressure and the Treaty-and-precautionary framework, enforced up to the Supreme Court.

Sustained Public Pressure — the Proven Lever

The Manapūuri lever: **sustained, broad, visible public pressure** — the petition, the campaign, the ballot box — can make a government-backed project politically impossible. A national-scale petition and a general-election issue saved a lake the government had planned to drown. Build that pressure.

Te Tiriti, Tikanga Māori, and the Precautionary Bottom Line

The sharpest modern lever: **Te Tiriti o Waitangi and tikanga Māori** bind every decision-maker, and the **precautionary bottom line** favours caution and environmental protection. In 2021 the **Supreme Court** stopped the South Taranaki seabed mine, requiring a "broad and generous" reading of the Treaty and Māori customary interests and favouring caution. Where a project affects the sea, the environment, or Māori

rights, press this hard.

Legal Personhood and the Courts

Where a feature holds **legal personhood** — the **Whanganui River** (Te Awa Tupua) or **Te Urewera** — it has its own standing and guardians. And the **courts, up to the Supreme Court**, enforce the Treaty, the precautionary bottom line, and the consent rules.

The Honest Limits — the Shifting Law

Straight talk: these levers are powerful, but the **RMA is being replaced**, a **fast-track narrows public input and appeals**, and **non-notified consents** can shut the public out entirely — so the legal ground is shifting and your say can be narrowed. So use the levers — public pressure, Te Tiriti, the precautionary bottom line, legal personhood, and the courts — act early before you're shut out, and count a project made impossible, a Treaty or precautionary bottom line upheld, and a feature protected as a legal person as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Harm becomes a national cause. Not "we oppose the scheme" but *"they mean to drown a lake / mine a seabed that belongs to all of us"* — the Manapūuri framing that roused a nation.

A seabed becomes a Treaty and precautionary matter. *"This affects the sea and Māori customary interests — the Treaty demands a broad and generous reading, and the law demands caution,"* as the Supreme Court held.

A river becomes a legal person. *"The Whanganui is a legal person with its own rights and guardians — this must answer to that."*

A non-notified consent becomes a democratic outrage. *"They mean to decide this without the public — act now, before we're shut out."*

Match it to the venue: the harm and the public case to the petition, the campaign, and the ballot; the Treaty and precautionary failings to the courts, up to the Supreme Court; the personhood to the feature's guardians; the shut-out to early, loud mobilisation.

STEP 5: MEDIA STRATEGY

In Aotearoa, sustained public attention is the proven, decisive lever — Manapūuri became a national cause and an election issue — and the Treaty and the environment are matters the public and the press take seriously. A free press makes the media front central.

Lead with the lake, the sea, or the river, not procedure. Not "the consent was flawed" but "they mean to drown a lake / mine a seabed / dam a river that belongs to all of us." Use your strongest material: the environmental and Treaty harm, the taonga at stake, and iwi and community voices.

Work several audiences at once. New Zealand press and public build the sustained pressure and the election issue; the Treaty and legal-personhood angles reach a national conscience and international attention. Make it easy: clear evidence, a rally-able story, strong iwi and community voices.

Two hard rules. Accuracy above all — one exaggeration can discredit the case. And partner genuinely with iwi and hapū, letting mana whenua lead on their own interests, rather than speaking over them.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Objection in the consent process.

Subject: Submission opposing [project] — [location].

"We, [group/residents], oppose [project]: [it harms the environment / the sea / Māori rights; it fails the precautionary bottom line]. We ask that consent be refused, and that the process be publicly notified. [Attach evidence.]"

8B — Pressing Te Tiriti / the precautionary bottom line (to a lawyer).

Subject: Treaty and precautionary challenge — [project].

"[Project] affects [the sea / the environment / Māori rights] and fails the Treaty's broad and generous reading and the precautionary bottom line, as in the South Taranaki seabed case. We ask your advice on a challenge, up to the Supreme Court. [Contact and evidence summary.]"

8C — To iwi / hapū (partnership).

Subject: Standing together on [project] — [rohe].

"[Project] threatens [the whenua / awa / moana / taonga] and Māori rights. We ask to stand with mana whenua, led by you on your interests, and to press Te Tiriti and tikanga together. [Contact.]"

8D — Invoking legal personhood.

Subject: [River/feature]'s legal personhood and [project].

"[Project] would harm [the Whanganui / a legal-person feature], which the law recognises as a legal person with its own guardians: [specifics]. We ask that its rights be upheld. [Attach evidence.]"

8E — To Forest & Bird / an NGO / scientists.

Subject: [Project] — evidence and campaign.

"[Project] threatens [environment/taonga]. We ask your help with the evidence, the consent process, and the campaign, as in Save Manapūiri. [Contact and evidence summary.]"

8F — To the company / minister.

Subject: Opposition and legal risk — [project].

"We are the community affected by [project] at [location]. It faces sustained public opposition and challenge under Te Tiriti and the precautionary bottom line, as the South Taranaki seabed mine did before the Supreme Court stopped it. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: They mean to [drown/mine/dam] a [lake/seabed/river] that belongs to us all.

"[Project] would harm [taonga/environment/Māori rights]. We can provide the evidence, the Treaty failing, and iwi and community voices. [Contact.]"

8H — Rallying the public.

Subject: Let's save [place], as we saved Manapūuri.

"[Project] threatens [our lake/sea/river]. In 1970, nearly one in ten New Zealanders signed to save Manapūuri, and made it an election issue that won. Let's rise the same way. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Check the notification status — act before a non-notified or fast-track consent shuts you out.**
2. **Partner genuinely with iwi and hapū (8C).**
3. **Press Te Tiriti and the precautionary bottom line (8B).**
4. **Invoke legal personhood if a feature has it (8D).**
5. **Build sustained public pressure — a petition and a campaign (8H).**
6. **Object in the consent, and go to the courts and the press if needed (8A/8E/8G).**

Even lean, those six build public pressure and press the Treaty and precaution — the Manapūuri-and-seabed template.

WHEN THE SYSTEM IS TILTED

Aotearoa's levers are strong, but the shifting law can narrow your say, and you must plan for it.

When it's fast-tracked or non-notified. The fast-track narrows public input and appeals, and non-notified consents can shut you out. Act early and loudly, build public pressure, and press the Treaty and precautionary bottom line, which bind regardless of process.

When the RMA is in transition. The Act is being replaced, its successor taking shape. Watch the law closely, and lean on the durable levers — Te Tiriti, the precautionary bottom line, legal personhood, and public pressure — that outlast any statute.

When the government backs the project. Manapūuri proved a government-backed project can be made politically impossible by sustained public pressure and the ballot box. Build that pressure.

When a project affects the sea or Māori rights. These are your sharpest modern levers — the Treaty's broad and generous reading and the precautionary bottom line stopped the seabed mine in the Supreme Court. Press them hard, in genuine partnership with mana whenua.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Aotearoa is, by repute, relatively clean, but the closeness of big developers to a fast-track process, and the narrowing of public input, create real risks of capture, so this matters.

How to spot it. Consents non-notified to shut the public out; fast-tracking a favoured project; assessments that understate the harm or the Treaty interests; benefits to the connected while taonga and communities bear the cost.

Who's supposed to guard against it. Aotearoa's audit and oversight bodies, and the **Ombudsman and Official Information Act**, examine conduct and open the record. The **courts, up to the Supreme Court**, can quash a flawed consent and uphold the Treaty. The **Waitangi Tribunal** examines Treaty breaches. And Aotearoa's **iwi, NGOs, and free press** can expose a bad, shut-out decision.

How to fight it safely. Use the Official Information Act to document precisely what a consent shows and understates, and keep every claim exact. Route serious evidence to the courts, the Ombudsman, the Waitangi Tribunal, and trusted journalists rather than making accusations you can't back, and build the public pressure that is the decisive force here. Pair the exposure with the Treaty and precautionary case.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documented harm builds your case; sustained public pressure and Te Tiriti are the two decisive forces; iwi, NGOs, and scientists are the muscle; the consent process, the courts, and legal personhood press it; the petition and the ballot make it politically impossible. Together they multiply. One at a time, or too late, they stall.

Early on (weeks 1–8): check the notification status and act before you're shut out; document the environmental and Treaty harm; partner with iwi and hapū; begin the petition and campaign.

In the thick of it (months–year+): press Te Tiriti and the precautionary bottom line, up to the Supreme Court; invoke legal personhood; build sustained public pressure toward an election issue.

The long haul (years): sustain the campaign and the coalition; watch the shifting law; hold the line for a project made impossible, a Treaty or precautionary bottom line upheld, and a feature protected as a legal person.

FINAL ASSESSMENT

Stopping a destructive project in Aotearoa New Zealand can be done — nearly one in ten New Zealanders signed to save Lake Manapūiri and made it an election issue that won, and the Supreme Court stopped a seabed mine on the Treaty and the precautionary bottom line. Hold both truths. Aotearoa's distinctive power is real and twofold: the Save Manapūiri model of sustained, broad, visible public pressure — the petition, the campaign, the ballot box — and the distinctly powerful modern framework of Te Tiriti o Waitangi, tikanga Māori, the precautionary bottom line, and legal personhood for nature. And the constraints are real: the RMA is being replaced, a fast-track narrows public input and appeals, and non-notified consents can shut the public out.

Here's the discipline that wins. Check the notification status first, and act early and loudly before a non-notified or fast-track consent shuts you out. Where a project affects the sea, the environment, or Māori rights, partner genuinely with iwi and hapū and press Te Tiriti's "broad and generous" reading and the

precautionary bottom line, up to the Supreme Court, as the South Taranaki seabed case did — and invoke legal personhood where a feature like the Whanganui holds it. And build sustained, broad, visible public pressure — the petition, the campaign, the ballot box — that made drowning Lake Manapūuri politically impossible. Watch the shifting law, and lean on the durable levers that outlast any statute. Count a project made impossible, a Treaty or precautionary bottom line upheld, and a feature protected as a legal person as wins. That's what saved Manapūuri and stopped the seabed mine — public pressure and the Treaty together. So can you.